

CLEVELAND RADIOLOGY CENTER
INC
a/a/o Diangelo Almeida

IN THE COUNTY COURT IN AND
FOR MIAMI-DADE COUNTY,
FLORIDA

Plaintiff,

CASE NO.:

vs.

OCEAN HARBOR CASUALTY
INSURANCE COMPANY

Defendant

COMPLAINT

COMES NOW, Plaintiff, CLEVELAND RADIOLOGY CENTER INC a/a/o Diangelo Almeida (hereinafter "Plaintiff") sues the Defendant, OCEAN HARBOR CASUALTY INSURANCE COMPANY (hereinafter "Defendant"), and in support thereof alleges the following:

GENERAL ALLEGATIONS

1. This is an action for Breach of Contract for damages in excess of One Dollar (\$1.00) but does not exceed Ninety Nine Dollars and Ninety Nine cents (\$99.99) exclusive of interest, costs and attorney's fees and is within the jurisdictional limits of this Court.

2. Defendant was and remains a corporation organized and existing under the laws of the State of Florida and is otherwise sui juris.

3. Defendant was and is a corporation authorized to do business, maintains an office and agents in MIAMI-DADE COUNTY and regularly sells automobile insurance policies to the general public in MIAMI-DADE COUNTY. The Defendant and/or its affiliates and/or its subsidiaries which issued the policy of insurance have substantial identities of interest.

4. At all times material hereto, Plaintiff was a corporation duly licensed to perform medical services in the State of Florida.

5. On or about February 27, 2021, Diangelo Almeida (hereinafter "Claimant") was involved in a motor vehicle accident.

6. As a result of that motor vehicle accident, Plaintiff provided Claimant with medical services and/or treatment.

7. As a direct and proximate result of the injuries sustained by Claimant in the accident, Claimant incurred reasonable expenses for necessary medical and rehabilitative care by the Plaintiff for an Emergency Medical Condition as evidenced by the Claimant's entire medical record. To date, Defendant refuses to pay the full amount due.

8. Defendant issued a policy of insurance to Yohana Perdomo which provided personal injury protection benefits coverage required by law to comply with Florida Statutes Sections 627.730 thru 627.7405. Plaintiff does not have a copy of the policy to attach; however, Plaintiff believes that the Defendant has a copy of said policy. Upon receipt of a certified copy of the insurance policy, same is hereby attached and incorporated herein by reference.

9. The above described policy was in full force and effect on the date of the accident and provided PIP coverage for Diangelo Almeida for bodily injuries sustained in said accident.

10. Plaintiff and Claimant have performed the statutorily required conditions precedent to entitle Plaintiff to recover benefits for said necessary medical, rehabilitative and remedial treatment regarding the above-described policy and statutory conditions precedent to instituting this action.

11. Claimant equitably assigned to Plaintiff and/or also executed a written assignment of benefits, assigning to Plaintiff certain benefits payable pursuant to the policy of insurance issued by Defendant.

12 Pursuant to said Assignment, Plaintiff gave notice of the covered losses and Plaintiff made demand for PIP benefits for reasonable, necessary and related medical treatment.

13. Defendant has denied coverage for, withheld or reduced the medical bill(s) that were submitted by Plaintiff for date(s) of service March 10, 2021 and/or misapplied the application of the deductible. Furthermore, Defendant was precluded from applying a deductible at all because the nonexistence of a properly executed deductible election form. A copy of the HCFA bills and/or patient ledger and/or explanation of benefits/review are attached hereto and incorporated by reference. Due to the failure of Defendant to pay these PIP benefits in accordance

with the law, Plaintiff has been required to retain the undersigned law firm to act on their behalf in this suit. Plaintiff has agreed to pay, and the attorneys for Plaintiff have agreed to accept, any court awarded fee.

BREACH OF CONTRACT FOR FAILURE TO PAY AMOUNTS OWED.

14. Plaintiff reavers and realleges paragraphs 1 through 13 of this complaint.

15. Despite prior demand by Plaintiff, Defendant has refused and continues to refuse to issue payment of all sums due Plaintiff, in violation of Section 627.736, Florida Statutes, and in breach of its contract with claimant.

16. Plaintiff has retained the undersigned firms to represent it in this action and has agreed to pay a reasonable fee for said services.

17. Pursuant to Section 627.428, Florida Statutes, Plaintiff is entitled to recover from Defendant reasonable attorney's fees and costs for the necessity of this action.

WHEREFORE, Plaintiff requests:

- a. That this Honorable Court declare that Defendant is overdue in payment of all sums due to Plaintiff;
- b. That Defendant pay all sums due to Plaintiff under Claimant's policy of Insurance with Defendant;
- c. That Defendant pay interest on all overdue amounts and/or late payments made in accordance with Section 627.736(4);
- d. That Defendant pay Plaintiff pre-suit penalty, postage, and interest in accordance with Section 627.736(10), Florida Statutes.
- e. That the Defendant correctly apply the deductible "to 100 percent of the expenses and losses" as described in Fla. Stat. 627.736, if applicable;
- f. That The Defendants pay all sums due to Plaintiff under any medical payment's (med-pay) coverage's in accordance with the Claimant's/policy holder's policy of Insurance with Defendant;

g. That Defendant pay Plaintiff reasonable attorney's fees and costs pursuant to Sections 627.428, Florida Statutes, and/or 627.736(5), Florida Statutes, for the necessity of this action;

h. Any other relief this Court deems just and appropriate.

WHEREFORE, Plaintiff demands judgment for personal injury protection benefits together with pre-judgment interest, costs and attorneys' fees pursuant to Florida Statute 627.428 and Florida Statute sections 627.736(5) and (8) and any other relief this Court deems proper and just.

Plaintiff demands trial by jury on all issues triable as of right.

LANDAU & ASSOCIATES, P.A.

1601 NW 136th Avenue, Suite A-210

Sunrise, Florida 33323

Telephone (954) 744-8383

Facsimile (954) 391-7805

Email: efilings@pip-lawyers.com

By: /S/ Todd Landau
TODD LANDAU, ESQ.
Florida Bar No. 0489433



Cleveland Radiology Center
12995 S. Cleveland Ave. Ste 182
Fort Myers, FL 33907
PH: 239-791-8426
FAX: 239-791-8428

Assignment of Benefits and Authorization for Treatment

Acknowledgement of receipt of notice of Privacy Practices: I hereby certify that I have received a copy of the Notice of Privacy for Cleveland Radiology Center, INC. I also acknowledge that Cleveland Radiology Center, INC reserves the right to revise the notice and that any future changes or revisions will apply to all protected health information contained in my medical records for Cleveland Radiology Center, INC.

Initials DA

Consent for Medical Treatment: I authorize to Cleveland Radiology Center, INC to furnish the necessary medical treatments or procedures, including diagnostic x-ray, laboratory procedures, contrast injection, and / or drug. I also authorized the attending physician(s), his assistants, or his designees to order supplies as needed. I am aware that the result of treatment/ diagnostic procedures in Cleveland Radiology Center, INC I recognize that the physician(s) who practice at Cleveland Radiology Center, INC are not employees of Cleveland Radiology Center, INC, but are independent physician(s). Cleveland Radiology Center, INC may delegate to these independent physician(s) those services physicians normally provide; any questions relating to care which physician has given or ordered should be directed to him/her.

Initials DA

Authorization for Release of information and Medical Records: I hereby authorize to Cleveland Radiology Center, INC to release any information regarding diagnosis and treatment requested by the referring physician(s) or attorney (if applicable). I also authorized release of same to insurance company to collect benefits under the policies. I further authorized any physician or institution that attended to this patient previously to furnish medical records and/or information which may be requested by Cleveland Radiology Center, INC or attending physicians.

Initials DA

Assignment of Benefits: I assign my rights to Cleveland Radiology Center, INC of any and all medical benefits applicable and otherwise payable to me. I understand that I am financially responsible to Cleveland Radiology Center, INC for charges not covered by this assignment. I also understand that Cleveland Radiology Center, INC is filling claims as a courtesy to me and that unless otherwise stipulated in a contract with my carrier, I am responsible for payment of this claim. Under newly created federal trade commission rules, providers of medical care are now considered "lenders" and as "such" must inform me of the following should "collections" (and additional cost) become necessary "should my balance(s) not be paid in full", I agree to pay the providers cost of collection fees and I agree to pay the providers cost of attorney fees as may be necessary to effect collection of this note.

Initials DA

Liability/Insurance Waiver: I hereby state that I wish Cleveland Radiology Center, INC to submit my claim for services rendered to my insurance company for services rendered for the date of accident of _____. I am not filling this claim with any other liability insurance that will have to be refunded immediately. I understand that the total amount originally charged for the services rendered will become due as payable by me. Filing your liability insurance does not constitute an assignment. If this is a legal case, we do not accept assignment pending the outcome of your case. You are responsible for your bill and it is entirely.

Initials DA

Worker Compensation: This authorizes my physician to furnish written reports and communicate orally with any representative, attorney for, or investigation from my workers compensation carrier regarding my examination, diagnosis, treatment and prognosis concerning injuries sustained of an accident occurring on _____.

Initials _____

THIS AUTHORIZATION FORM MUST BE SIGNED TO EXPEDITE THE FILING OF YOUR INSURANCE CLAIM

Last Name: Almeida First Name: Deangelo Signature: Deangelo Date: 3/10/21

CLEVELAND RADIOLOGY CENTER

Patient Account Ledger

As of August 12, 2021

Show all data where the Chart Number is between 00210317,00210317

Entry	Date	POS	Description	Procedure	Document	Provider	Amount
00210317 Deangelo Almeida							
5936	03/10/2021	11		72040	2104290000	FJM	250.00
5937	03/10/2021	11		72070	2104290000	FJM	250.00
5938	03/10/2021	11		72100	2104290000	FJM	250.00
6394	05/20/2021	11	PIP	107	2108120000	FJM	-189.62

Total Charges: \$750.00

Total Ins Payments: \$189.62